

SENATE FLOOR VERSION

March 6, 2025

COMMITTEE SUBSTITUTE
FOR

SENATE BILL NO. 3

By: Green and Hamilton of the
Senate

and

George of the House

[biosolids - land application - permits - cessation
of certain actions - plan submission - rule
promulgation - codification -
emergency]

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 2-6-501.7 of Title 27A, unless
there is created a duplication in numbering, reads as follows:

A. To protect the health and safety of the people of this
state, land application of sludge and biosolid material is hereby
prohibited on and after July 1, 2027. On and after the effective
date of this act, the Department of Environmental Quality shall not
issue any new permit for the land application of sludge or biosolid

1 material. Renewal of permits for land application shall be left to
2 the discretion of the Department of Environmental Quality.

3 B. 1. Not later than September 1, 2025, all persons or
4 entities permitted to land apply sludge or biosolid material shall
5 reduce the amount of such material land applied by at least twenty-
6 five percent (25%).

7 2. Not later than September 1, 2026, all persons or entities
8 permitted to land apply sludge or biosolid material shall reduce the
9 amount of such material land applied by at least fifty percent
10 (50%).

11 C. Not later than September 1, 2025, any person or entity
12 permitted to land apply sludge or biosolid material shall submit a
13 plan for full cessation of such actions to the Department of
14 Environmental Quality. The plan shall be compiled and submitted in
15 the form and manner prescribed by the Department. The Department
16 shall promulgate rules to implement the provisions of this section.

17 D. For the purposes of this section:

18 1. "Biosolid material" means sewage sludge containing any
19 perfluoroalkyl and polyfluoroalkyl substance; and

20 2. "Sludge" shall mean sludge as defined pursuant to Section 2-
21 10-401 of Title 27A of the Oklahoma Statutes.

22 SECTION 2. It being immediately necessary for the preservation
23 of the public peace, health or safety, an emergency is hereby
24

1 declared to exist, by reason whereof this act shall take effect and
2 be in full force from and after its passage and approval.

3 COMMITTEE REPORT BY: COMMITTEE ON ENERGY
4 March 6, 2025 - DO PASS AS AMENDED BY CS
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